

The University of Rajasthan (Amendment) Act, 1987

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State of Rajasthan - Act

The University of Rajasthan (Amendment) Act, 1987

RAJASTHAN

India

The University of Rajasthan (Amendment) Act, 1987

Act 36 of 1987

Published on 1 January 1987

Commenced on 1 January 1987

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The University of Rajasthan (Amendment) Act, 1987

Act

No. 36 of 1987

[Received the Assent of the Governor on the 7th day of November, 1987].

An Act further to amend the University of Rajasthan Act, 1946.

Be it enacted by the Rajasthan State Legislature in the Thirty-eighth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the University of Rajasthan (Amendment) Act, 1987.

(2)

It shall and shall be deemed to have come into force on such date as the State Government may, by notification in the official Gazette, appoint.

2.

Substitution of section 5 of the University of Rajasthan Act, 1946.

- For section 5 of the University of Rajasthan Act, 1946, hereinafter referred to as the principal Act, the following shall be substituted, namely:-

"5. Territorial exercise of powers. - The jurisdiction of the University shall extend to, and the powers conferred by or under this Act shall be exercisable in, all the University departments at Jaipur, its constituent colleges, institutions and institutes, all such colleges, institutions and institutes in the State as provide instruction in various systems of medicine and the Malviya Regional Engineering College, Jaipur and the Engineering College, Kota."

3.

Amendment of section 45 of the University of Rajasthan Act, 1946.

- In section 45 of the principal Act,-

(a)

in the marginal-heading, the words "at the commencement of the Act", appearing after the words "Removal of difficulties" shall be deleted; and

(b)

between the words "the provisions thereof", and the words "the Government", the words "and in giving effect to the provisions of the University of Rajasthan (Amendment) Act, 1987," shall be inserted.

4.

Insertion of new section 45-A in the University of Rajasthan Act, 1946.

- After the existing section 45 of the principal Act, the following shall be inserted, namely:-

"45-A. Special Provision. - Notwithstanding anything contained in any law for the time being in force, the Chancellor may, in order to give effect to the provisions of the University of Rajasthan (Amendment) Act, 1987, in consultation with the State Government, make such orders, as are deemed necessary, for the transfer of-

(a)

any officer, teacher, employee or servant;

(b)

any movable or immovable property or any rights or interests therein;

(c)

any fund, grant, contribution, donation, aid or benefaction received, accrued or promised;

(d)

any dues, liabilities or obligations incurred or lawfully subsisting in favour of or against the University;

(e)

any will, deed or other document containing any bequest, gift or trust;

from the University to any other University on such terms and conditions as may be determined in the orders".

5.

Repeal and Savings.

(1)

The University of Rajasthan (Amendment) Ordinance, 1987 (Ordinance No. 15 of 1987) is hereby repealed.

(2)

Notwithstanding such repeal all things done, actions taken or orders made under the principal Act as amended by the aforesaid Ordinance shall be deemed to have been done, taken or made under the principal Act as amended by this Act.

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